

## 25STCV30838 25STCV30838

County: los-angeles

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Beauty Rehab LLC v. Lux Beauty, LLC, et al.

Wednesday, September 16, 2026

CASE NUMBER: 25STCV30838

OPPOSED

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Defendants

Lux Beauty, LLC, Neal Flowers, and Kate Jung's Motion to Quash Service of Summons and Stay or Dismiss Case for Forum Non Conveniens

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Facts: This is an

action for breach of contract and fraud. The Complaint alleges as follows.

Plaintiffs Beauty Rehab, LLC, Keith H. Harris, and Chad G.

Hett ("Plaintiffs") entered into an agreement with Defendants Lux Beauty, LLC, Neal Flowers, and Kate Jung ("Defendants") whereby the latter agreed to purchase the assets of Plaintiff Beauty Rehab for \$105,000, consisting of one large initial payment followed by eleven monthly installments. (Complaint ¶¶ 2–4.) Defendants entered into the contract with no intention of performing, and despite acquiring the agreed assets, have failed to make any payment. (Complaint ¶¶ 6–7.)

Procedural History: Plaintiffs

filed the Complaint on October 22, 2025, alleging two causes of action:

1.

Breach of Contract

2.

Fraud

Defendants

filed the present motion to quash and forum non conveniens motion on January 8, 2026.

Plaintiffs

filed an opposition on August 31, 2026.

Defendants

filed a reply on September 9, 2026.

Analysis:

I.

MOTION TO QUASH

SERVICE OF SUMMONS

Code of Civil Procedure section 418.10, subd. (a)(1) states: “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes . . . (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

A defendant may serve and file a motion to quash service of summons on the grounds of a lack of jurisdiction over him or her. (Code Civ. Proc., § 418.10 subd. (a)(1).) A plaintiff opposing a motion to quash service for lack of personal jurisdiction “has the initial burden to demonstrate facts establishing a basis for personal jurisdiction.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.) If satisfied, the burden then shifts to defendant to show that exercise of jurisdiction would be unreasonable. (Id.)

A court may exercise jurisdiction on any

basis not inconsistent with the Constitution of California or of the United States. (Code Civ. Proc., § 410.10.) The exercise of personal jurisdiction is constitutionally permissible only “if the defendant has sufficient ‘minimum contacts’ with the forum state so that the exercise of jurisdiction ‘does not offend “traditional notions of fair play and substantial justice.” [Citations.]’” (HealthMarkets, Inc. v. Superior Court (“HealthMarkets, Inc.”) (2009) 171 Cal.App.4th 1160, 1166 [citing International Shoe Co. v. Washington (1945) 326 U.S. 310, 316].) A defendant’s conduct with the forum state must be such that the defendant has “fair warning” that its activities might subject it to personal jurisdiction. (HealthMarkets, Inc., supra, 171 Cal.App.4th at p. 1166–1167; Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 472.)

“Minimum contacts exist where the defendant’s conduct in the forum state is such that he should reasonably anticipate being subject to suit there, and it is reasonable and fair to force him to do so. [Citations.] In contrast, contacts that are random, fortuitous, or attenuated do not rise to the minimum level, and general jurisdiction cannot be exercised under these circumstances.” (F. Hoffman-La Roche, Inc. v. Superior Court (“F. Hoffman-La Roche”) (2005) 130 Cal.App.4th 782, 795.)

A defendant that has substantial, continuous, and systematic contacts with the forum state is subject to general jurisdiction in the state, meaning jurisdiction on any cause of action. Absent such extensive contacts, a defendant may be subject to specific jurisdiction, meaning jurisdiction in an action arising out of or related to the defendant’s contacts with the forum state. Specific jurisdiction depends on the quality and nature of the defendant’s forum contacts in relation to the particular cause of action alleged.

(HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.)

In determining whether specific jurisdiction exists over a given defendant, “the appropriate inquiry is whether the plaintiff’s cause of action “arises out of or has a substantial connection with a business relationship defendant has purposefully established with California.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 448.) “[A]s the relationship of the defendant with the state seeking to exercise jurisdiction over him grows more tenuous, the scope

of jurisdiction also retracts, and fairness is assured by limiting the circumstances under which the plaintiff can compel him to appear and defend. The crucial inquiry concerns the character of defendant's activity in the forum, whether the cause of action arises out of or has a substantial connection with that activity, and upon the balancing of the convenience of the parties and the interests of the state in assuming jurisdiction." (Ibid.)

Defendants Lux Beauty, LLC, Neal Flowers, and Kate Jung ("Defendants") move to quash service of summons upon them on the grounds that they are a Nevada corporate entity and Nevada residents who are being sued over a contract to purchase the assets of Plaintiff Beauty Rehab, LLC, another Nevada corporation, and as such never purposefully availed themselves of the benefits of California sufficient to create general or specific jurisdiction in this state. (Motion at pp. 5–9.)

Plaintiffs Beauty Rehab, LLC, Keith H. Harris, and Chad G. Hett ("Plaintiffs") present evidence to show that Defendants purposefully availed themselves of the benefits of dealing with the forum state sufficient to create specific jurisdiction in California. Although this matter concerns a contract for the purchase by Nevada-based parties of the assets of a Nevada corporation (Flowers Decl. Exh. A), Plaintiffs Keith Harris and Chad Hett are also parties to the agreement in their individual capacities, and both are California residents. (Complaint ¶¶ 10–11; Harris Decl. ¶ 2.) Plaintiff Harris testifies that it was Defendants who approached Plaintiffs with the proposed transaction and negotiated with the California-based Plaintiffs by telephone and email. (Harris Decl. ¶¶ 3–4.) Moreover, the terms of the agreement contemplate not a one-off transaction, but a series of installment payments to be made to Plaintiffs over the course of a year. (Harris Decl. ¶ 5.) Harris states that Defendants understood that the individual Plaintiffs resided in California, and that the payments were to be directed to Plaintiffs there. (Harris Decl. ¶ 4.)

The present case is like *Hall v. LaRonde* (1997) 56 Cal.App.4th 1342, 1347, in which the court found purposeful availment where a California resident and a New York resident electronically negotiated and executed a software provision agreement whereby the Californian agreed to provide continuing support and service in exchange for continuing royalty payments from New York to California, thus creating a "continuing obligation between himself and a resident of California." (Hall, *supra*, 56 Cal.App.4th at p. 1347, internal quotation marks and alterations omitted.) Defendants' continuing obligation to pay installment payments over eleven months to California residents is analogous, and moreover,

Plaintiffs present evidence that Defendants specifically solicited their business and initiated the transaction at issue.

Also analogous is

the case of *Luberski, Inc. v.*

*Oleificio F.LLI Amato S.R.L.* (2009) 171 Cal.App.4th 409, 419, in which the court found purposeful availment where an Italian vender (“Amato”) was alleged to have breached a contract to deliver olive oil to California. The court stated: “Amato received the purchase order and was presented with the option of completing a substantial transaction with a California entity in California, which required delivery of goods to California. Amato opted to accept this order. The totality of facts supports a finding that Amato purposefully availed itself of the benefits of the forum.” (Id. at p. 419.)

Defendants here similarly entered into a substantial transaction with California residents with the understanding that they were required to send payment to California residents over a continuing duration.

Defendants argue that fair play and substantial justice require adjudicating the matter in Nevada, where they are residents. (Motion at pp. 10–11.) Yet they submit no concrete evidence of prejudice to be suffered by litigation here, save conclusory statements offered in their declarations. While Plaintiffs’ objections to these declarations are **OVERRULED**, the statements themselves are not persuasive. And while Defendants make arguments arising from the Nevada forum selection clause in the operative agreement, the existence of this agreement bears upon the separate matter of its enforceability, not this court’s possession of the constitutional prerequisites for personal jurisdiction over Defendants. The forum selection clause shall be addressed below, in connection with Defendants’ motion to enforce that agreement.

II.

INCONVENIENT

FORUM

“When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (Code Civ. Proc. § 410.30, subd. (a).)

In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a "suitable" place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.

(*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.) The party moving for forum non conveniens bears the initial burden of establishing the propriety of dismissal. (*Ibid.*) "If the plaintiff is a California resident, the 'plaintiff's choice of a forum should rarely be disturbed unless the balance is strongly in favor of the defendant.'" (*National Football League v. Fireman's Fund Insurance Company* (2013) 216 Cal.App.4th 902, 917.)

However, Defendants move for stay or dismissal based on the operation of a forum selection clause. (Motion at pp. 11–12.) This involves a different analysis:

The law in this area is well-established. In California, the procedure for enforcing a forum selection clause is a motion to stay or dismiss for forum non conveniens, but a motion based on a forum selection clause is a special type of forum non conveniens motion. The factors that apply generally to a forum non conveniens motion do not control in a case involving a mandatory forum selection clause. When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. Moreover, a court will normally reject any claims that the chosen forum is unfair or inconvenient. Also, a court will usually honor a mandatory forum selection clause without extensive analysis of factors.

(*Richtek USA, Inc. v. uPI Semiconductor*

Corporation (2015) 242 Cal.App.4th 651, 661.)

Defendants here

cite the following language from the contract that Plaintiffs seek to enforce:

Each party irrevocably

submits to the exclusive jurisdiction of the federal and state courts of Clark County, Nevada, for the purposes of any action, proceeding, suit, or claim arising out of this Agreement. Each party agrees to commence any such action, proceeding, suit, or claim in the state or federal courts of Clark County., Nevada. Each party irrevocably and unconditionally waives any objection to the laying of venue of any action, proceeding, suit, or claim arising out of this Agreement or the transaction contemplated hereby in the state or federal courts of Clark County, Nevada, and hereby further irrevocably and unconditionally, waives and agrees not to plead or claim in any such court that any such action, proceeding, suit, or claim brought in any such court has been brought in an inconvenient forum.

(Flowers Decl. Exh. A, ¶ 7.14.) The agreement also includes a choice-of-law provision requiring application of Nevada law. (Id. at ¶ 7.13.)

The forum

selection clause applies here. The clause includes not merely a consent to jurisdiction in Clark County, but states that this jurisdiction shall be exclusive and mandatory. The clause applies to any claims “arising out of this agreement.” (Flowers Decl. Exh. A, ¶ 7.14.) Plaintiffs claims are for breach of the agreement, and promissory fraud, based on the contention that the promises of the agreement were made without intent to perform, and that Plaintiff was damaged by rendering the consideration contemplated by the agreement. (Complaint ¶¶ 25–27.) The claims here arise out of the agreement, and thus fall within the ambit of the forum selection clause.

Plaintiffs in

opposition argue that Defendants should have brought their inconvenient forum motion as a separate motion from their motion to quash. (Opposition at pp. 11–12.) They cite no authority for this proposition save the fact that such a motion is authorized under Code of Civil Procedure § 418.10, subd. (a)(2), while a motion to quash is governed by Code of Civil Procedure § 418.10, subd. (a)(1). (Opposition at pp. 11–12.) But these separate subdivisions do not

indicate that a motion made under one subdivision cannot include a request for relief under the other, as Defendants do here. Indeed, the statute expressly permits a motion to be brought “for one or more of the following purposes,” including to quash service of summons or to raise objections based on inconvenient forum. (Code Civ. Proc. § 418.10, subd. (a).)

Plaintiffs

briefly argue that their fraud claim does not arise out of the agreement, and is not subject to the forum selection clause. (Opposition at p. 12.) But this argument is unconvincing. The fraud that Plaintiffs allege is that they were induced to execute the agreement and deliver their company's assets because of the promises made in the agreement to pay a certain price. No characterization of the facts permits the conclusion that their fraud claim does not arise from the agreement.

This matter is

therefore properly stayed pending resolution of the matter in the forum contemplated by the agreement. Although Defendants seek alternately dismissal or stay of the present action, dismissal here would be improper because an “action brought by a California resident may not be dismissed on grounds of forum non conveniens except in extraordinary circumstances.” (Century Indemnity Co. v. Bank of America (1997) 58 Cal.App.4th 408, 411.) “The trial court, however, has considerably wider discretion to grant stays precisely because under a stay California retains jurisdiction.” (Ibid.)

Accordingly,

the motion to stay this matter on forum non conveniens grounds is GRANTED.

Superior Court of California

County of Los Angeles

Department 7232

JAMES R. LAWRENCE,

Plaintiffs,

vs.



LOCKTON COMPANIES,  
LLC, et al.;

Defendants.

Case No.:  
25STCV30838

Hearing Date: September 16, 2026

[TENTATIVE] RULING RE:

Defendants Lux beauty,  
LLC, Neal Flowers, and Kate Jung's Motion to Quash Service of Summons and  
Stay or Dismiss Case for Forum Non Conveniens

Defendants Lux Beauty, LLC, Neal  
Flowers, and Kate Jung's Motion to Quash Service of Summons and Stay or Dismiss  
Case for Forum Non Conveniens is GRANTED in part. Service of summons is not  
quashed, but the matter is STAYED to permit litigation of the matter in Clark  
County, Nevada, pursuant to the parties' forum selection agreement.

Defendants  
to provide notice.

Dated: September 16, 2026

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Hon.  
Richard S. Kemalyan

Judge  
of the Superior Court